

RESOLUTION OF FILE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following:

FACTS

FIRST: On November 10, 2022, a complaint was received by the Spanish Agency for Data Protection (hereinafter, AEPD) with registration number REGAGE22e00051056032.

The complainant states that IBERDROLA CLIENTES, S.A.U. (hereinafter "IBERCLI") is demanding payment of a debt associated with the activation of two electricity supplies, despite the fact that the complainant has not contracted these services.

Furthermore, the complainant emphasizes that they do not agree with what "IBERCLI" indicated in EXP202209194 regarding the refusal to delete their personal data due to an outstanding debt associated with two electricity supply contracts, as they have not signed an electricity supply contract with the company.

Relevant documentation provided by the complainant:

- Copy of the invoices from their electricity company, associated with the billing period attributed to them by the respondent.
- Copy of the contracts with the respondent, unfilled and unsigned. On the left side of said contract, the CEV ending inXXXX appears, corresponding to the registration of the documentation submitted to the City Council of Gijón, and the CSV IBE...XXXX and CSV IBE...XXXX, corresponding to the electricity supply contracts for the two properties owned by the complainant.

Date on which the claimed events took place: 09/15/2021.

SECOND: In accordance with the mechanism prior to the admission of complaints filed with the AEPD, as provided in Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), which consists of forwarding the complaints to the data protection officers designated by the controllers or processors, or to them when they have not designated any, and for the purpose indicated in the aforementioned article, the complaint was forwarded to "IBERCLI" for analysis and response within one month.

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THIRD: On January 5, 2023, after analyzing the documentation in the file, a resolution was issued by the Director of the Spanish Agency for Data Protection, agreeing to the non-admission of the complaint for processing. The resolution was notified to the appellant on January 20, 2023, as evidenced in the file.

FOURTH: On February 7, 2023, the appellant filed a voluntary appeal for reconsideration through the AEPD's Electronic Registry against the resolution issued in file EXP202212474, expressing their disagreement with the contested resolution and requesting that the initial complaint be admitted for processing.

FIFTH: On July 3, 2023, the appeal filed was sent to "IBERCLI" in accordance with the provisions of Article 118.1 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) for the purpose of formulating allegations and presenting the documents and justifications deemed appropriate. The respondent has not submitted any allegations.

SIXTH: On September 6, 2023, the appeal for reconsideration filed by the complainant against the resolution of this Agency issued on January 5, 2023, was upheld, and the initial complaint was admitted for processing in accordance with the provisions of Article 65 of the LOPDGDD.

SEVENTH: On October 3, 2023, "IBERCLI" submitted a document titled "Hearing of the interested party in voluntary appeal for reconsideration," in which it provides: The contracts allegedly signed by

the complainant for the electricity supply in two properties owned by them. On the left side of said contract, the CSV IBE...XXXX and CSV IBE...XXXX appear, corresponding to the electricity supply contracts for the two properties owned by the complainant (Pages 71 and following of EXP202212474).

Additionally, it provides documents of Certified Information Process Signature of said contracts issued by EDATALIA DATA SOLUTIONS S.L., through the remote signature platform ecoSignature (Pages 102 and following of EXP202212474).

In these Certified Information Process Signature documents, Iberdrola Delta is listed as the issuer of the document, and the email ***EMAIL.1 is provided; the validator is the complainant, and their email ***EMAIL.2 is also listed (this email matches the one provided by the complainant as documentation accompanying their submission on February 7, 2023, page 45 of EXP202212474), along with the complainant's ID number and mobile phone number.

As traceability information of all actions performed in the signature process, a table is included that contains the following fields: Email (the complainant's); Status (Received, viewed, accepted, validated, signed, sent, deleted, received); Event (explanation of what each status consists of); IP; Date and time (when each event occurs, in the case of the contract with CSV IBE...XXXX it spans from 09/15/2021, 12:54:37 PM UTC + 02:00:00 until...

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9/23/2021 1:03:13 PM UTC + 02:00:00; and in the case of the contract with CSV IBE...XXXX it covers from 9/15/2021, 1:01:18 PM UTC + 02:00:00 to 9/23/2021 1:03:11 PM UTC + 02:00:00) and Browser.

EIGHTH: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following points:

From the facts stated in the background, it is deduced that the issue to be clarified is the existence or not of validly signed contracts between the claiming party and the claimed party.

The claiming party states that they have not signed any contract, providing a copy of the contracts that do not bear their handwritten signature, although on the left side of the same, the CSV IBE...XXXX and CSV IBE...XXXX do appear. And that there is another company that has billed them for the electricity supply for the month of September that includes the days for which the claimed party demands payment.

"IBERCLI" understands that the claiming party electronically signed the contracts as certified by EDATALIA DATA SOLUTIONS S.L., through the remote signing platform ecoSignature in the Certified Information Process Signature documents of said contracts.

EDATALIA DATA SOLUTIONS S.L., through the remote signing platform ecoSignature, would be acting as a provider of qualified electronic trust services.

The Ministry for Digital Transition and Public Function is responsible for managing in Spain the Registry of Providers of Qualified Electronic Trust Services, which has two sections:

- Qualified electronic trust service providers, and,
- Non-qualified electronic trust service providers.

According to the information contained in the Registry of Providers of Electronic Trust Services, the certifying entity EDATALIA DATA SOLUTIONS S.L. would be a Non-Qualified Electronic Trust Service Provider as can be verified in the following screenshot:

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On the dates 12/02/2024 and 13/02/2024, information was requested from "IBERCLI" and from the entity that certifies the electronic signature of the contracts.

On 05/03/2024, the entity that certifies the electronic signature of the contracts submitted a written response to the information request in which it states:

1. That it does not have access to the contracts signed between Iberdrola and its clients as the contracted service does not include their custody. Once the contract is signed on the signing platform, Iberdrola downloads it to its information system and sends a notice to Edatalia for it to be deleted from the platform.

2. That attached are the certificates of evidence of the signature of the two contracts. These certificates are linked to the contracts that are held by Iberdrola. These certificates contain evidence of the signing process: data of the signer (name, surname, ID, email, phone), data of the process (time of email receipt, time of contract signing, IP...). The signature evidence certificates are the same as those provided by the claimed party in their writing of 03/10/2023.

1. That attached are the documents related to GDPR that were signed between Iberdrola and Edatalia at the time of signing the service provision contract dating from 2019. Additionally, the documents signed in the last extension of the service (end of 2021) are provided.

2. A document has also been provided that describes how the signing process works on the platform and how the claimant is informed:

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- Email received by the signer to initiate the process.

A screenshot of a model is provided, not of the email sent to the claimant. It includes a clarifying text box indicating, highlighted in red font: "Process initiation: the signer receives a personalized email from Iberdrola inviting them to read, accept, and sign the document. They are also informed that after signing the document, they will receive a signed copy of it."

- Validation screen for the signer of the personal data provided for signing the contract.

Several clarifying text boxes are included, indicating, highlighted in red font: "By clicking on the 'View Document' button, the signer initiates the signing process. They can view the document before proceeding to accept and sign it. They also have the option to reject it by indicating the reasons for rejection. Before accessing the document view, they go to a data authentication screen. The signer views their data and can read the general terms of use of the signing platform. The signer must validate their data (name, surname, email, ID number, and phone number) and accept the general terms of use of the platform before proceeding to sign the document."

- Access screen to the general terms of use of the signing platform, which states how their personal data will be processed by the trusted third party (Edatalia).

A clarifying text box is included, indicating, highlighted in red font: "By clicking here, the signer accesses the general terms of use of the signing platform."

- Signing of the contract (in point 2 we provide the traces of the process).

On 18/03/2024, the responding party submits a written response to the information request made, in which they state among other aspects:

- That regarding the provision of the recording of the call made on 22/09/2021, at 17:20 hours, by the claimant to the phone number ***PHONE.1, IBERDROLA, in which they contact the claimant XXXXXX, informing them that they did not accept those contracts which they completely rejected, and that they communicated that these contracts were annulled, they state that as of the date of this writing, a copy of the recording is not available. The call noted in the file was classified as a quality call; consequently, in accordance with the provisions of Article 4.5 of the LOPD and with IBERCLI's internal policy on retention, cancellation, and deletion of personal data, this call was deleted when the necessary period for the purpose for which it was recorded ended.

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However, it should be noted that the cancellation request that the claimant expressed during the call was duly attended to. A screenshot is provided that records the cancellation date of the contracts the day after the call, 23/09/2021.

- That they attach as Annex 1.1 and Annex 1.2 the .xml files containing the readings made by the distributor of the meters corresponding to the CUPS ES00...XXXXX and ES00...XXXX. It is important to note that these readings are always carried out by the distributor company, in accordance with the regulations of the energy sector, and never by IBERDROLA, which is an energy marketing company.
- That they attach as Annex 2.1 and Annex 2.2 the invoices corresponding to the 2 supplies.
- That they attach as Annex 3.1-3.7 the contractual documentation related to the data protection relationship existing between IBERDROLA, as the data controller, and the company EDATALIA DATA SOLUTIONS S.L., as the data processor, with which the electronic signature service for contracts with clients is contracted.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred on each supervisory authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative actions.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Legality of processing

The first paragraph of Article 6 of the GDPR establishes the following:

"1. Processing shall be lawful only if at least one of the following conditions is met:

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- a) the data subject has given their consent to the processing of their personal data for one or more specific purposes;
- b) the processing is necessary for the performance of a contract in which the data subject is a party or for the application at their request of pre-contractual measures;
- c) the processing is necessary for compliance with a legal obligation to which the data controller is subject;
- d) the processing is necessary to protect vital interests of the data subject or of another natural person;
- e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;
- f) the processing is necessary for the purposes of legitimate interests pursued by the data controller or by a third party, provided that such interests do not override the interests or the fundamental rights and freedoms of the data subject which require the protection of personal data, particularly when the data subject is a child.

The provisions of item f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions.

III

Statements of the Respondent

In this case, the claimant states that "IBERCLI" is demanding payment of a debt associated with the activation of two electricity supplies, when they have not contracted for the same.

In response to the actions of transfer and information carried out, a letter from "IBERCLI" has been received in this Agency, in which, as far as it concerns here:

- 1.- The contracts submitted by the claimant when they filed the complaint on the left side of the same, do show the CSV IBE...XXXX and CSV IBE...XXXX.
- 2.- The CSV IBE matches those listed in the contracts submitted by the respondent in a document presented by them during the hearing process of the optional appeal for reinstatement, although they were submitted after the notification of the resolution of that appeal to the respondent.
- 3.- There is a third party that certifies that those contracts have been signed electronically via an electronic signature platform.
- 4.- The third party that certifies that those contracts have been signed electronically is registered in the Trust Service Providers Registry of the Ministry for Digital Transition and Public Function as a Non-Qualified Trust Service Provider.
- 5.- Billing is carried out from the date of contracting 15/09/2021 at 12:54 until the day following the call in which the telephone cancellation is requested, which is 23/09/2021.

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IV

Conclusion

Therefore, based on the information provided in the previous paragraphs, no evidence has been found to substantiate the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection.

This is without prejudice to any subsequent actions that this Agency may carry out, applying the investigative and corrective powers it holds.

Thus, as it has not been possible to attribute responsibility for the processing in accordance with what has been indicated, the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO PROCEED TO FILE the present actions.

SECOND: TO NOTIFY this resolution to IBERDROLA CLIENTES, S.A.U. and to the claimant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reinstatement before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

940-301023

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